

Tear, Jayne

From: McArthur, Wesley
Sent: 01 December 2025 23:03
To: Regen, Licensing
Cc: [REDACTED] Tear, Jayne
Subject: Application for a premises licence: Monster Sapo, Basement, 9 Camberwell Church Street, London, SE5 8TR (our ref: L1U 887341)
Attachments: Monster Sapo (887341) - LRA's rep'.docx

Dear Licensing,

Please find attached a representation regarding the above premises.

Regards,

Wesley McArthur

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To: Licensing Unit	From: Wesley McArthur wesley.mcarthur@southwark.gov.uk 020 7525 5767 (on behalf of the Licensing Unit in its role as a responsible authority)	Date: 01/12/2025
Subject:	Representation	
Act:	The Licensing Act 2003 (the Act)	
Premises:	Monster Sapo, Basement, 9 Camberwell Church Street, London, SE5 8TR	
Application number:	887341	
Location ID:	200713	Ward: St Giles

We object to the grant of an application for a premises licence, submitted by Monster Sapo Limited under the Licensing Act 2003 (the Act), in respect of the premises known as Monster Sapo, Basement, 9 Camberwell Church Street, London, SE5 8TR

1. The application

The application is to extend the hours for the provision of licensable activities as follows

Recorded music

Mon	17:00	01:00
Tues		
Wed	18:00	00:00
Thur	16:00	00:00
Fri	18:00	03:00
Sat	18:00	03:00
Sun	20:00	01:00

The provision of late-night refreshment both indoors and outdoors:

Mon	23:00	00:00
Tues		
Wed	23:00	00:00
Thur	23:00	00:00
Fri	23:00	00:00
Sat	23:00	00:00
Sun	23:00	00:00

The sale of alcohol to be consumed on the premises

Day	Start	Finish
Mon	23:00	00:00
Tues		
Wed	23:00	00:00
Thur	23:00	00:00
Fri	23:00	00:00
Sat	23:00	00:00

Opening times:

Mon	17:00	01:00
Tues		
Wed	18:00	00:00
Thur	16:00	00:00
Fri	18:00	03:00
Sat	18:00	03:00
Sun	20:00	01:00

2. The Statement of Licensing Police (SoLP)

According to sections 6 & 7 of this council's statement of licensing policy 2021 – 2026 (the SoLP), the premises fall within a residential area.

A copy of the SoLP is available via:

[Our licensing policies | Southwark Council](#)

The following closing times are recommended in our SoLP in respect of various types of licensed premises located in residential areas as stated -

Restaurants and cafes:

- **Sunday to Thursday 00:00**
- **Friday and Saturday 01:00**

Public houses, wine bars or other drinking establishments and bars in other types of premises:

- **Sunday to Thursday 23:00**
- **Friday and Saturday 00:00**

Event premises / spaces where sale of alcohol is included in, and ancillary to, range of activities including meals:

- **Sunday to Thursday 00:00**
- **Friday and Saturday 01:00**

Nightclubs:

- **Not considered suitable for residential areas**

3. Our objection

Our objection relates to the promotion of all of the licensing objectives and is based on the criteria set out in '3a', '3b' and '3c' below.

3a. Cumulative Impact

The premises fall within the Camberwell Cumulative Impact Area (CIA).

Paragraph 130 of this council's SoLP 2021 – 2026 states –

- In areas where the number, type and density of premises selling alcohol are high or exceptional, serious problems of nuisance and disorder may arise some distance from those premises. Such problems generally occur as a result of large numbers of drinkers being concentrated in an area. Typically, this occurs when customers leave premises at peak times or where there is queuing at fast food outlets or for public transport. Moreover, large concentrations of people may also increase the incidence of other criminal activities such as drug dealing, pick pocketing and street robbery. Local services such as public transport services, public lavatory provision and street cleaning may not be able to meet the demand posed by such concentrations of drinkers and this can lead to issues such as street fouling, littering, traffic and public nuisance caused by concentrations of people who cannot be dispersed quickly.

Paragraph 131 of the SoLP 2021 – 2026 states –

- *“Applications made within specified Cumulative Impact Areas (CIAs) are deemed likely to add to the potential impact the policy is intended to avoid. There is therefore an automatic presumption that such applications will be refused, however each application will be judged on its own merits.”*

Paragraph 153 of the SoLP stipulates regarding the Camberwell CIA that -

- *“The classes of premises to which the policy applies is defined as follows – night clubs; pubs and bars; off-licences, grocers, supermarkets, convenience stores and similar premises.”*

As per paragraph 153 of the SoLP, the council has found that certain types of premises are likely to increase the negative cumulative impact in the Camberwell CIA of licensed premises in that area. We are in agreement with this stance and are therefore of the opinion that the application be determined by the licensing subcommittee.

Paragraph 132 of the statement of licensing policy states that –

- *“It is normally the case that a representation citing a relevant CIA will have to be determined at a Licensing Sub-Committee hearing.”*

We further note that section 136 of the statement of licensing policy states –

- *“...it is for the Applicant to demonstrate that the application will not, if granted, further contribute to the negative local cumulative impact on any one or more of the licensing objectives.”*

Full details of the statement of licensing policy are available via:

[Premises licence \(Licensing Act 2003\) - Southwark Council](#)

Further, we contend that granting the application could further contribute to the negative local cumulative impact of licensed premises in the Peckham CIA.

Customers will be able to consume alcoholic beverages much later into the night on the busiest days of the week in the locale. This leads to a much great chance of intoxication, confrontations and disorderly behaviour, and the types of incidents described in section 130 of the SoLP, as above.

We also refer to R (on the application of Westminster City Council) -v- Middlesex Crown Court [2002] EWHC 1104 in which HHJ Baker adjudicated.

- *“Notwithstanding the applicant being a fit and proper person and the premises would be well run a licence could be refused on the sole ground that the area was already saturated with licence premises....and the cumulative effect of the existing premises was impacting adversely on the area to an unacceptable level.”*

This means that the above application can be refused on the **sole basis** that it is subject to a cumulative impact area.

We further add that the full council assembly approved the current version of the SoLP and have maintained the Camberwell CIA four times in a row, showing that the problems related to licensed premises in the locale are *longstanding and ongoing*.

We do note however that all applications must be judged on their **own merits**.

We also note that the applicant has not addressed cumulative impact *at all* in the application.

3b. Operating hours

We say that allowing operating hours past those recommended in the SoLP is likely to give rise to nuisance, crime and disorder and anti-social behavior in the locale into the early morning in an area that has very dense residential housing.

We suggest that the licensing sub-committee adheres to this council's own policies, which have been applied for good reason. The operational hours suggested in the SoLP exist to protect residents in the borough, and other people travelling through the borough.

We further add that, full council assembly approved the current version of the SoLP, and have maintained the suggested operating hours four times in a row. This shows that there is still a need for the recommended hours to be given **considerable** weight in the determination of premises licence applications.

We contend that the licensing sub-committee should be ***the gatekeeper of the Statement of Licensing Policy*** that was, in part, ratified by councillors who form part of this very licensing sub-committee.

It is important to note that there are residential flats immediately above the premises, adjacent to the premises and opposite the premises at first floor level and above. There is a high possibility that residents in these flats could be disturbed by the operation of the premises if it is permitted to operate late into the night.

3c. Local resident complaint

On 02 September 2025 a local resident made the following complaint:

Complaint is: 'This business is licensed as a restaurant but regularly acts as a late night party, destination serving alcohol and playing anti socially loud music until 6am that causes nuisance to neighbours. live 2 floors upstairs and am regularly kept awake at night by anti social, loud music.'

On 07 November 2025 officers inspected the premises and on inspecting CCTV footage noted the following (inspecting officer notes):

- The CCTV footage revealed that the premises was operating beyond its permitted hours on the following dates:

Date Time Observed Observation

04/10/2025 01:13 Customers drinking on premises
11/10/2025 01:21 Customers drinking on premises
18/10/2025 00:52 Customers drinking on premises
25/10/2025 00:33 Customers drinking on premises
01/11/2025 01:41 Customers drinking on premises

The footage clearly showed customers inside consuming alcohol during these times, indicating that the premises was operating without a valid licence.

A warning letter was sent to the licensee regarding the above breaches of the Licensing Act 2003.

We say that the above breached indicate that the licensee isn't a responsible premises operator and may operate in excess of any newly extended hours as they have been confirmed to have done already.

Taking into account all of the above, we recommend that this application is refused in its entirety by the licensing sub-committee, and that **no** extension of operating hours be granted at all.

We may present further submissions prior to, or at, the hearing to determine this application.

Yours sincerely,

Wesley McArthur
Principal Enforcement Officer